

Syllabus.

MONROE ET AL. v. PAPE ET AL.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE SEVENTH CIRCUIT.

No. 39. Argued November 8, 1960.—Decided February 20, 1961.

Under R. S. § 1979, derived from § 1 of the "Ku Klux Act" of April 20, 1871, petitioners (six Negro children and their parents) brought an action in a Federal District Court against the City of Chicago and 13 of its police officers for damages for violation of their rights under the Fourteenth Amendment. They alleged that, acting "under color of the statutes, ordinances, regulations, customs and usages" of Illinois and the City of Chicago but without any warrant for search or arrest, the police officers broke into petitioners' home in the early morning, routed them from bed, made them stand naked in the living room, and ransacked every room, emptying drawers and ripping mattress covers; that the father was taken to the police station and detained on "open" charges for ten hours while he was interrogated about a two-day-old murder; that he was not taken before a magistrate, though one was accessible; that he was not permitted to call his family or attorney; and that he was subsequently released without criminal charges being preferred against him. *Held*: The complaint stated a cause of action against the police officers under § 1979; but the City of Chicago was not liable under that section. Pp. 168-192.

1. Allegation of facts constituting a deprivation under color of state authority of the guaranty against unreasonable searches and seizures, contained in the Fourth Amendment and made applicable to the States by the Due Process Clause of the Fourteenth Amendment, satisfies to that extent the requirement of § 1979. Pp. 170-171.

2. In enacting § 1979, Congress intended to give a remedy to parties deprived of constitutional rights, privileges and immunities by an official's abuse of his position. Pp. 171-187.

(a) The statutory words "under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory" do not exclude acts of an official or policeman who can show no authority under state law, custom or usage to do what he did, or even who violated the state constitution and laws. Pp. 172-187.